

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	24-07-2026 18:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	24-07-2026 18:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	30 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Tribal Affairs
विभाग का नाम/Department Name	Ministry Of Tribal Affairs
संगठन का नाम/Organisation Name	National Education Society For Tribal Students
कार्यालय का नाम/Office Name	Delhi
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :nests-tribal@tribal.gov.in Buyer Email id: principal-0308110@nests.tribal.gov.in
कुल मात्रा/Total Quantity	3370
वस्तु श्रेणी /Item Category	Full Pants , Full Sleeve Shirt , Blazer , House T-Shirt , Sports half Pant , Kurta , Salwar , Waist Coat , House Ribbon
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	Full Pants, Full Sleeveshirts, Blazer, House T-Shirt, Sports Half Pant, Kurta, Salwar, Waist Coat, House Ribbon
	Searched String: Full Pants Pants, Writing Pad Chair, Pants & Palazzos, New Born / Neonatal Nappy - Disposable, Full Field Digital Mammography Unit, Full-jet Cone Spray Nozzle, Corrugated Fibreboard Boxes - Heavy Duty, Full Height Turnstile Gate (MHA), BiPAP Full Face Mask (V2), Full Body Sanitizer Spray Chamber Searched String: Full Sleeveshirts Full Field Digital Mammography Unit, Writing Pad Chair, Full-jet Cone Spray Nozzle, Corrugated Fibreboard Boxes - Heavy Duty, Full Height Turnstile Gate (MHA), Full Body Sanitizer Spray Chamber, BiPAP Full Face Mask (V2), Full Gloss Polyurethane Finishing Paint, Fiber Media converter, socks Searched String: Blazer Blazer, Coat / Blazer for VIP Security Personel (MHA) Searched String: House T-Shirt Recycled T - Shirt, T-Shirt (V3), All in One PC (V2), T Shirt (HPCL), T - Shirt Round Neck Disruptive Pattern (MHA),

बिड विवरण / Bid Details	Books (V2), T - Shirt (Physical Training) (IAF), T - Shirt (Indian Coast Guards), Men's Cotton Knitted Sports Shirt / T-Shirt conforming to IS 4375, T - Shirt Half Sleeves with Collar for Ministerial Staff of CAPFS (MHA) QRs
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Searched String: Sports Half Pant Under Pant Thermal (MHA), Writing Pad Chair, Pre School Uniform - Shorts (Half Pants) as per Government of Gujarat Specification, Cricket gloves, Shorts - Sports, Men's Cotton Knitted Sports Shirt / T-Shirt conforming to IS 4375, Half Chaps or Gaiters, Smith Machine (Version 2), Mens Trouser for VIP Security Personel (MHA), T - Shirt Half Sleeves with Collar for Ministerial Staff of CAPFS (MHA) QRs Searched String: Kurta Kurtas and Kurta Sets, Kurtis and Kurta Sets - Handicraft, Divyangjan-Fashion And Apparel Searched String: Salwar Salwar Suits - Handicraft, Divyangjan-Fashion And Apparel, Ladies Dress Material Fabric Searched String: Waist Coat Recycled PET Waist Coat, Garden Bench, Coat Stand, personal safety kit reflective luminous garments, Waist / Lumbar Traction Belt, Fire Retardant Coat, Classroom Stools, Lab Coat (NPCIL), Nitrile Coated/Nitrile Hand Gloves (V2), Coat Parka (MHA) Searched String: House Ribbon Thermal Ribbon, Bunk House, Ribbon Blender Mixer, Magnesium anode Ribbon, Books (V2), Satin Ribbon (V2), Revolving Chair (V5), Satin Ribbon (V3), Modular Table / Meeting Table / Centre Table (V2), Ink Ribbons for Dot Matrix Printer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	• Men's Cotton Knitted Sports Shirt / T-Shirt conforming to IS 4375 • Pants • T-Shirt (V3)
बीओक्यू शीर्षक /BOQ Title	UNIFORM
बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का) /Minimum Average Annual Turnover of the bidder (For 3 Years)	3 Lakh (s)
मूल उपकरण निर्माता का औसत टर्नओवर (गत 3 वर्षों का)/OEM Average Turnover (Last 3 Years)	18 Lakh (s)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,OEM Annual Turnover,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	3
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
प्राथमिक उत्पाद श्रेणी/Primary product category	Full Pants
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
वित्तीय दस्तावेज की आवश्यकता है / Financial Document Required	Yes
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई के लिए आरक्षित / Reserved for Make In India products

एमआईआई के लिए आरक्षित / Reserved for Make In India products	Yes
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. OEM Turn Over Criteria: The minimum average annual financial turnover of the OEM of the offered product during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the OEM is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

3. Bid reserved for Make In India products: : Procurement under this bid is reserved for purchase from Class 1 local supplier as defined in public procurement (Preference to Make in India), Order 2017 as amended from time to time and its subsequent Orders/Notifications issued by concerned Nodal Ministry for specific Goods/Products. However, eligible micro and small enterprises will be allowed to participate. The minimum local content to qualify as a class 1 local supplier is denoted in the bid document. All bidders must upload a certificate from the OEM regarding the percentage of the local content and the details of locations at which the local value addition is made along with their bid, failing which the bid is liable to be rejected. In case the bid value is more than Rs 10 Crore, the declaration relating to percentage of local content shall be certified by the statutory auditor or cost auditor, if the OEM is a company and by a practicing cost accountant or a chartered accountant for OEMs other than companies as per the Public Procurement (preference to Make-in -India) order 2017 dated 04.06.2020 . In case Buyer has selected Purchase preference to Micro and Small Enterprises clause in the bid, the same will get precedence over this clause.

4. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and

Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

5. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

Full Pants

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decid

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

Advisory-Please refer attached BOQ document for detailed consignee list and delivery period.

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	400	15

Full Sleeve Shirt

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decide.

तकनीकी विशिष्टियाँ /Technical Specifications

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BOQ Detail Document	View File

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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	400	15

Blazer**(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)**

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decide.

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
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BOQ Detail Document[View File](#)

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परेशिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेशिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	70	15

House T-Shirt

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decide.

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परेशिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेशिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
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क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	410	15

Sports Half Pant

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decided.

तकनीकी विशिष्टियाँ /Technical Specifications

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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	410	15

Kurta

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decided.

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
BOQ Detail Document	View File

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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	420	15

Salwar

(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decided.

तकनीकी विशिष्टियाँ /Technical Specifications

Specification Document	View File
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	420	15

Waist Coat**(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)**

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Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decide.

तकनीकी विशिष्टियाँ /Technical Specifications

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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	420	15

House Ribbon**(Minimum 50% Local Content required for qualifying as Class 1 Local Supplier)**

Techno Commercial Criteria - Offered price of the bidder will be loaded by the buyer as per criteria mentioned below. This loading will be done only for the purpose of bid evaluation and determination of L1, L2 etc. Contract

will be awarded without any loading factor

Techno Commercial for Bid Evaluation Loading Criteria of bid price allowed	Yes
Techno Commercial Criteria	As Per Additional Terms and Conditions and Guideline It Will Be Decided

तकनीकी विशिष्टियाँ /Technical Specifications

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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Rajesh Kumar Sharma	497778,EMRS Jamthan, Koriya, Chhattisgarh, 497778	420	15

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer ,is solely responsible for the impact of these clauses on the bidding process, its

outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**

- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---